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COMMISSION IMPLEMENTING DECISION (EU) 2023/1054

of 30 May 2023

laying down rules for the application of Regulation (EU) 2021/696 of the European Parliament and of the Council as regards the service portfolio for the Governmental Satellite Communications services offered by the system established under the Union Space Programme

(OJ L 141, 31.5.2023, p. 49)

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Article 1

Definitions

For the purposes of this Decision, the definitions in Article 2 of Commission Implementing Decision (EU) 2023/1055 ([1]) apply.

Article 2

GOVSATCOM service portfolio

1. ►M1 The GOVSATCOM service portfolio shall consist of the following categories of governmental or non-governmental communication services: ◄

(a) end-to-end services, allowing the user to connect to a network capable to provide services;

(b) anchored capacity services, allowing the user to use satellite capacity and associated anchoring station facility;

(c) raw capacity services, allowing the user to use satellite capacity (bandwidth).

2. The services referred to in paragraph 1 shall comply with the primary and secondary attributes of the communication services categories are set out in Annex I.

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2a. The system delivering the governmental services shall comply with the following requirements:

(a) it is controlled by a Member State and that Member State decides on its main characteristics, supervises its exploitation and determines its users;

(b) the governmental services are aimed for the sole use of a Member State or a Member State authority;

([1]) Commission Implementing Decision (EU) 2023/1055 of 30 May 2023 setting out the rules on the sharing and prioritisation of satellite communication capacities, services, and user equipment to fulfil the function referred to in Article 66(2) of Regulation (EU) 2021/696 of the European Parliament and of the Council (see page 57of this Official Journal).

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(c) the governmental services in the common Union pool meet the attributes set out in Annex II for enhanced and robust pooled services.

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3. User equipment may be provided by a resource provider to the user as part of its service.

4. The services referred to in paragraph 1, points (a) and (c) shall be provided through the GOVSATCOM hub infrastructure in its initial services operational configuration.

Article 3

Service profiles and requests

1. GOVSATCOM service profiles shall be determined on the basis of the values of their primary attributes set out in Annex II ('predefined service profiles').

2. Users shall be able to issue requests of a predefined service profile, where the user is able to browse the predefined service profiles which contain the information provided by the respective resource provider.

Users shall also be able to issue requests of a user determined profile, with specified service attributes' values which have been previously defined by the user. The user-determined profile shall be used to issue service request to the GOVSATCOM Hub for matching predefined service profiles.

Users shall also be able to issue requests of a service with attributes' values selected by the user, where the attributes' values are used to issue service request to the GOVSATCOM hub for matching predefined service profiles.

3. The GOVSATCOM hub shall respond to users' requests by presenting the available services which match the requests. For the available services, the user shall be informed about their primary and secondary attributes as well as any additional information and details specific to the service. Users shall be able to select from the available services which match their request.

4. Following the selection of a service by the users, and according to the rules laid down in Implementing Decision (EU) 2023/1055, the GOVSATCOM hub shall proceed to the allocation of the resources for the provision of the service and inform the user when the service is booked and activated.

5. Following the activation of the service the respective users shall be able to access it either with their user equipment when compatible with the service, or with user equipment provided by the resource provider through GOVSATCOM.

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Article 4

Access to GOVSATCOM service portfolio and services

1. The competent GOVSATCOM authorities (CGAs) established in accordance with Article 68(4) and (5) of Regulation (EU) 2021/696 shall have access to the service portfolio and to the services selection process.

2. In the framework of the services selection process a CGA shall:

(a) receive, prioritise, anonymise as needed, and forward its users' service requests to the GOVSATCOM hub;

(b) receive the results of the requests from the GOVSATCOM Hub and forward them to the users;

(c) receive, anonymise as needed, and forward its users' service selection to the GOVSATCOM hub.

3. With regard to the anonymisation referred to in paragraph 2, the CGA, during the provision of a service to the users shall act as a proxy to any communication of the user with the GOVSATCOM hub, thereby anonymising the identity of the user. Appropriate classified channels shall be used for communication, as needed. The CGA may select not to anonymise a user. In this case user identity shall be made available from the GOVSATCOM hub to the resource provider to support the selection, establishment, management, maintenance and troubleshooting of the service provided to the user. Furthermore, the resource provider may request the de-anonymisation of a user. In this case, the GOVSATCOM hub shall forward this request to the relevant CGA for assessment.

4. The GOVSATCOM hub shall provide to the CGAs the information needed for the selection, the booking, the establishment and the provision of the services.

Article 5

Service prioritisation and security levels

1. The prioritisation of the provision of services shall be performed in accordance with Implementing Decision (EU) 2023/1055.

2. Users shall have access to the services of the service portfolio on the basis of their security level, as set out in Commission Implementing Decision C(2023)3204 of 30 May 2023 ([1]).

Article 6

GOVSATCOM pooling and services availability

1. Pooled satellite communication capacities and services shall be made available through the service portfolio with their attributes' values.

([1]) Commission Implementing Decision C(2023)3204 of 30 May 2023 on setting out the general security requirements of GOVSATCOM referred to in Article 34(2) of Regulation (EU) 2021/696 of the European Parliament and of the Council.

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2. The availability of services in the portfolio shall be subject to the supply and demand of pooled and shared satellite capacities and services procured from entities as referred to in Article 64 of Regulation (EU) 2021/696.

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Article 6a

Review of Member States capacities and infrastructure

1. Taking into account the monitoring of supply and demand for GOVSATCOM referred to in Article 69 of Regulation (EU) 2021/696, Member States shall inform the Commission, upon its request or at the request of another Member State and within two months of that request, whether they agree to share capacities or ground infrastructure within the framework of GOVSATCOM.

2. The Commission shall assess the capacities or ground infrastructure referred to in paragraph 1 within six months after receiving a reply from a Member State and proceed with the acquisition procedures, where necessary.

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Article 7

Entry into force

This Decision shall enter into force on the day following that of its publication in the *Official Journal of the European Union*.

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ANNEX I

Communication services categories attributes

Table 1

End-to-end Service

Primary attributes	
[Maximum] Latency	Round Trip Transmission delay in ms (milliseconds)
Throughput*	Peak information rate in Mbps (megabits per second)
Symmetric service	Yes/No *Note: A symmetric service has the same attributes' values for the forward and return links* *Note: in case of negative reply, Forward (FWD)/Return (RTN) link throughput should be identified*
Coverage type	Regional/Global/Spot
Minimum Availability	Service minimum availability (% of time per month)
Security level	Enhanced/Robust/Assured
Secondary attributes	
Committed Information Rate*	Committed information rate in Mbps
Service area	List of available geographical areas for the provision of the service as in Figure 1
Service specific information	List of information related to the service, not included in other attributes (e.g. coverage area, radiated power, G/T, Quality of Service, deployment time, training, technical support, installation services options, overall latency of the service, polarisation etc.)
User equipment	Fixed/Deployable/Mobile
User equipment provision	Yes/No *Note: The user shall be presented a list of compatible user equipment with their technical information (e.g. Manual/Automatic pointing capability), in order to be selected by the user as needed.*
Maximum time of service disruption	In hours *Note: Decimal points are supported for the definition of subdivision of the hour*
Link status service	Yes/No
Connection to terrestrial networks	Yes/No *Note: In case of 'Yes' the terrestrial network(s) for which connectivity is provided are listed*

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Table 2

Anchored capacity service

Primary attributes	
Maximum Latency	Round Trip Transmission delay in ms
Bandwidth*	Capacity in MHz
Symmetric service	Yes/No *Note: A symmetric service has the same attributes' values for the forward and return links* *Note: in case of negative reply FWD/RTN link throughput should be identified*
Coverage type	Regional/Global/Spot
Frequency band	HF-VHF-UHF/L/S/C/X/Ku/Ka/Ka Gov/V/Q
Frequency service type	FSS/MSS/BSS
Minimum Availability	Service minimum availability (% of time per month)
Security level	Enhanced/Robust/Assured
Secondary attributes	
Service area	List of available geographical areas for the provision of the service as in Figure 1
Anchoring station interface	Interface description used for the connection of user provided equipment to the anchoring station
Additional anchoring capabilities	Yes/No *Note: In case of 'Yes' the additional anchoring capabilities are listed (e.g. Multiprotocol Label Switching, ethernet connectivity etc.)*
Service specific information	List of information related to the service, not included in other attributes (e.g coverage area, radiated power, G/T, Quality of Service, deployment time, training, technical support, installation services options, overall latency of the service, polarization etc.)
User equipment	Fixed/Deployable/Mobile
User equipment provision	Yes/No *Note: The user shall be presented a list of compatible user equipment with their technical information (e.g. Manual/Automatic pointing capability), in order to be selected by the user as needed.*
Maximum time of service disruption	In hours *Note: Decimal points are supported for the definition of subdivision of the hour*
Link status service	Yes/No

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Table 3

Raw capacity service

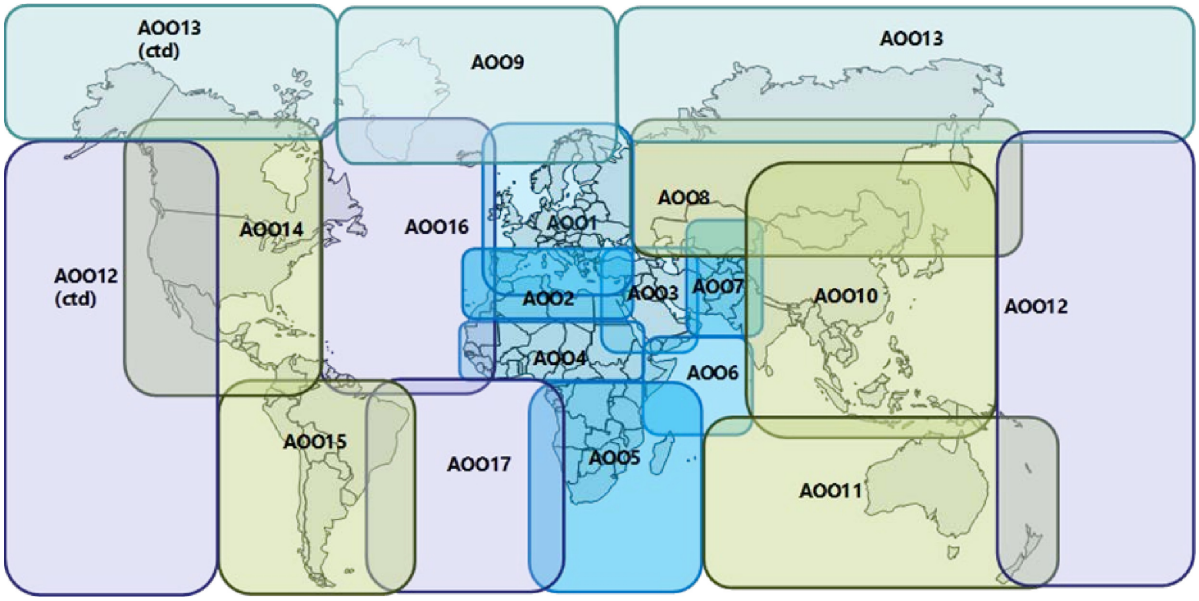
Primary attributes	
Maximum Latency	Round Trip Transmission delay in ms
Bandwidth*	Capacity in MHz
Symmetric service	Yes/No *Note: A symmetric service has the same attributes' values for the forward and return links* *Note: in case of negative reply FWD/RTN link throughput should be identified*
Coverage type	Regional/Global/Spot
Frequency band	HF-VHF-UHF/L/S/C/X/Ku/Ka/Ka Gov/V/Q
Frequency service type	FSS/MSS/BSS
Minimum Availability	Service minimum availability (% of time per month)
Security level	Enhanced/Robust/Assured
Secondary attributes	
Service area	List of available geographical areas for the provision of the service as in Figure 1
Service specific information	List of information related to the service, not included in other attributes (e.g. coverage area, radiated power, G/T, Quality of Service, deployment time, training, technical support, installation services options, overall latency of the service, polarisation etc.)
User equipment	Fixed/Deployable/Mobile
User equipment provision	Yes/No *Note: The user shall be presented a list of compatible user equipment with their technical information (e.g. Manual/Automatic pointing capability), in order to be selected by the user as needed.*
Maximum time of service disruption	In hours *Note: Decimal points are supported for the definition of subdivision of the hour*
Link status service	Yes/No

*: In the case of non-symmetric service this attribute shall accept two values; one for the forward (satellite to user) link and one for the return (user to satellite) link.

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Figure 1

GOVSATCOM Service Areas



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ANNEX II

Predefined service profiles

Enhanced pooled service	
Communication category	End-to-end Service
Maximum Latency	600 ms
Throughput	10 Mbps
Coverage	Regional
Minimum Availability	99,5 %
Security level	Enhanced services, which provide a very high degree of availability and resilience, and a high degree of confidentiality, integrity and availability.

Robust pooled service	
Communication category	End-to-end Service
Maximum Latency	600 ms
Throughput	10 Mbps
Coverage	Regional
Minimum Availability	99,5 %
Security level	Robust services, which provide a high degree of availability and resilience, and a high degree of confidentiality, integrity and availability.

Assured pooled service	
Communication category	End-to-end Service
Maximum Latency	600 ms
Throughput	10 Mbps
Coverage	Regional
Minimum Availability	98 %
Security level	Assured services, which provide a lower degree of robustness and resilience, and a lower degree of confidentiality, integrity and availability.

The security levels are defined in Implementing Decision C(2023)3204 of 30 May 2023.